

Confilegal

OPINIÓN

Lo que salvó a la empresa relojera no fue el argumento, fue la trazabilidad



Un tribunal anuló una multa de 133.251 euros por 515 pagos en efectivo. No ganó la interpretación. Ganó que cada pago podía seguirse de origen a destino.

ADRIÁN A.
HOLGUÍN

· FUNDADOR Y PRESIDENTE DE CANNASHARK CONSULTING · PRINCIPAL DE HOLGUÍN & COMPANY

El Tribunal Superior de Justicia de Canarias anuló la sanción impuesta a una empresa relojera que había realizado 515 pagos en efectivo de 1.000 euros exactos.

La Administración leyó el límite como "a partir de". La empresa lo leyó como "superiores a". El tribunal consideró razonable el error.

Fue razonable porque era verificable: los 515 pagos estaban contabilizados, cada

uno trazable, ninguno fraccionado ni oculto.

La defensa documental se construye antes de la inspección, no después.



● SWIPE FOR THE ENGLISH VERSION

The argument did not save them.

The paper trail did.

A Spanish watch company read a cash-payment limit one way. The tax authority read it another. The court sided with the company, and the reason was not the reading.

€133,251

fine annulled by the High Court of Justice of the Canary Islands

515

cash payments of exactly €1,000, every one on the books and traceable from origin to destination

0

payments split, hidden or kept off the ledger. That is what made the error "reasonable."

Build the defense before the inspection.

1

Write the interpretation down.

A dated internal memo stating which reading of the rule you adopted and why. Discrepancy becomes documented interpretive error, not concealment.

2

Make every transaction traceable.

Origin, destination, amount, record. If one of the 515 payments had been off the books, the same court would have seen hiding instead of a mistake.

3

Do it in the quiet weeks.

This is weeks of work, and almost nobody starts until the notice arrives. By then the file is evidence, not preparation.

Regulated is regulated, in any language.

Confilegal is Spain's news site for the legal profession, based in Madrid. The column grew out of one of their court stories. Same discipline we run for cannabis operators in the U.S.: licenses, compliance, operations, and the records that hold up when someone checks.



THE OUTLET

Confilegal, Madrid. Independent legal journalism for Spain's lawyers, judges and compliance officers.

THE AUTHOR

Adrian A. Holguin, J.D., M.B.A. Founder of CannaShark Consulting and Principal of Holguin & Company. Expert witness on regulatory and financial matters.

READ THE COLUMN IN SPANISH · LINK IN BIO